

DEPARTMENT OF THE NAVY
NAVSUP WSS
5450 Carlisle Pike | PO Box 2020 | Mechanicsburg, PA 17055-0788

Justification for Other Than Full & Open Competition

1. Contracting Activity

Contracting Activity		NAVSUP WSS - Mechanicsburg			Type	C1 Repair LTC
PD #		N0010422U5976			RVPR#	
Item Manager	Nissley, Quincy	Work Function	Planner	Phone		Code N961
Technician	Briggs, Jared	Work Function	Reprocurement Technician	Phone		Code N9652
Buyer	Long, Justin	Work Function	Contract Specialist	Phone		Code N7M2.4

2. Description of the Action Being Approved

Description	The intent of this requirement is an award of an LTC with a PoP of 3 years with 2 option years through other than full and open competition with the 2 authorized sources w/ the hope of receiving 2 competitive offers.
The period of performance for the proposed action will be	The ordering period will be from date of award through 5 years after date of award, which is projected to be July 2023 to July 2028.

3. Description of Supplies/Services

☐ Spares ☒ Repair/Overhaul ☐ Modification ☐ Management ☐ Piece Parts ☐ Data Report

Nomenclature	COMPRESSOR,ROTARY	Quantity	150
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NSN	4310-01-248-3144	Cage Code	62228
P/N	6309956, K898155-04	Unit Price	\$29,963.09
Estimated Value	\$4,494,463.50		
Ship To	W25G1U		
Line of Accounting	97 00 XX XX 4930 NC1A 000 81004 0 050120 7T 000000 8RMC00000000		

4. Statutory Authority Permitting Other Than Full & Open Competition

This J&A is based upon the authority of 10 USC 2304(C) (1), only one or a limited number of responsible sources will satisfy agency requirements, as implemented by FAR 6.302-1

5. Rationale Justifying Use of Cited Authority

A/RMC 1

Suitable for competitive acquisition for the second or subsequent time.

A/RMSC R

The Government does not own the data or the rights to the data needed to purchase / contract repair of this part from additional sources. It has been determined to be uneconomical to buy the data or rights to the data. It is uneconomical to reverse engineer the part. This code is used when the Government did not initially purchase the data and/or rights. If only one source has the rights or data to manufacture/repair this item, A/RMCs 3, 4, or 5 are valid. If two or more sources have the rights or data to manufacture/repair this item, A/RMCs 1 or 2 are valid.

This acquisition will be solicited to

Raytheon Co. - (15090) and MEGGITT DEFENSE SYSTEMS INC - (62228). Based on the market research performed by the technical advocate, it is concluded that the only sources of repair are Raytheon Co. - (15090) and MEGGITT DEFENSE SYSTEMS INC - (62228). It has been deemed uneconomical to pursue the acquisition of the data because the data and it's content are not available. There are no authorized substitutes of this item as this is the only item known to meet performance and compatibility requirements within the higher assembly. Furthermore, there is no data to support an open and full competition. The item has to be tested within the upper assembly and qualify within approved testing specifications procedures, embedded coding procedures, design protocols, and internal QA requirements. Only the sources listed above, who are the manufacture and the higher-level integrator, maintain the design and manufacturing standards via design drawings, manufacture procedures, and quality assurance procedures. The Government does not have the data/or is not authorized to use the data, to approve alternate sources. Additionally, this item is criticality code "S" meaning: THE ITEM IS A NON-AVIATION CRITICAL SAFETY ITEM (CSI) WHOSE FAILURE WILL RESULT IN SERIOUS DAMAGE TO EQUIPMENT OR SERIOUS INJURY OR DEATH TO PERSONNEL.

6. Description of Efforts Made To Solicit Offers From as Many Offerors as Practicable

A Request for Information / Sources Sought Notice was entered on the government-wide point of entry on

A Request for Information / Sources Sought Notice was entered on the government-wide point of entry on

12/07/2022

and as a result

2 Responses were Received as follows. Raytheon responded stating, "They were no bidding the requirement based the OEM being an active bidder." Meggitt expressed interest in this requirement.

The proposed contract action was synopsized on the government-wide point of entry on

04/05/2023

and as a result

No additional sources expressed interest.

Market research was conducted in accordance with far part 10. The results of the market research conducted (or the reason(s) market research was not conducted) are as follows

A technical review, which consisted of searching several Government databases including ITIMP, FLIS, NSEDR, and ERP, has been completed on this item. Search criteria included Part Number, Design Control Activity, Cage Code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding, recorded approved source of repair, historical sources of repair and past contracts. Based on this market research the contracting officer has determined that the only known repair sources are Raytheon Co. - (15090) and MEGGITT DEFENSE SYSTEMS INC - (62228). If a company other than those listed believes they have the ability to repair this item, they can submit the item to the Engineering Program Office, to include research and development, drawings and test specifications. The program office may test and evaluate the item at the company's expense, when appropriate. Upon qualification, the approved company will be able to participate in current or future solicitations. ITIMP- Reviewed award history and other potential sources of supply, AMC/AMSC code, part number, CAGE code. FLIS- Search criteria included part number, design control activity, Cage code, NSN, Nomenclature, AMC/AMSC, AAC, Criticality Coding which all matched with ITIMP and NSEDR.

7. Determination of Fair And Reasonable Cost

The contracting officer determines that the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Remove Barriers to Future Competition

To promote competition, NAVSUP WSS will continue to encourage vendors with the expertise to manufacture/repair the subject item to submit a complete technical data package for review and source approval by the appropriate engineering source approval authority per the (WSS) guidelines. Also, future requirements will be advertised on the government-wide point of entry.

Previous J&A

Previous J&A Attached

9. Any Other Facts Supporting Other Than Full & Open Competition

A positive displacement compressor designed to compress air or gas by means of rotating elements enclosed in a housing.

History

Created By	Jared Briggs	Work Function	Reprocurement Technician	Created Date	09/27/2022
					27-SEP-22

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

**Requirements Cognizance
Signature**

Quincy Nissley

Work Function

Planner

**Requirements Cognizance
Signature Date**

09/28/2022

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

**Technical Cognizance
Signature**

Jared Briggs

Work Function

Reprocurement Technician

**Technical Cognizance
Signature Date**

09/28/2022

I certify that this J&A is accurate and complete to the best of my knowledge and belief

Contracting Officer Certification Signature

Andrea West

Work Function

Contract Specialist

**Contracting Officer Certification Signature
Date**

03/29/2023

I certify that the facts and representations under my cognizance which are included in this J&A are complete and accurate to the best of my knowledge and belief

**Competition Advocacy
Review And Concurrence
Signature**

Adam Johnson

Work Function

Competition Advocate

**Competition Advocacy
Review And Concurrence
Signature Date**

04/26/2023

I certify that this J&A is legally sufficient to the best of my knowledge and belief

**Legal Sufficiency Review
Signature**

Kimberly Miller

Work Function

Attorney

**Legal Sufficiency Review
Signature Date**

04/28/2023

I certify that this J&A is accurate and complete to the best of my knowledge and belief

**Approval Required By Far
6.304 Signature**

John Sweeney

Work Function

Competition Advocate

**Approval Required By Far
6.304 Signature Date**

05/12/2023